

STATE OF NEW YORK

4491--A

2025-2026 Regular Sessions

IN SENATE

February 5, 2025

Introduced by Sen. HELMING -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to authorize Jeffrey Alva Beall eligibility to apply for military service credit in the New York state teachers' retirement system

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding subdivision 5 of section 1000 of the
2 retirement and social security law, Jeffrey Alva Beall, a retired member
3 of the New York state teachers' retirement system, who was on active
4 duty in the United States Army from April 17, 1984 until February 27,
5 1987, shall be eligible to apply for military service credit, to be
6 applied retroactively to the date of his retirement, in the New York
7 state teachers' retirement system as otherwise provided pursuant to the
8 provisions of section 1000 of the retirement and social security law.
9 To obtain such credit Mr. Beall shall pay the New York state teachers'
10 retirement system a sum equal to the product of the number of years of
11 military service he served, and three percent of Mr. Beall's compen-
12 sation earned during the last twelve consecutive months of credited
13 service preceding the date of his retirement.

14 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

Bill Description:

This fiscal note is prepared for legislative bill draft #01081-03-5. This bill would allow Jeffrey Alva Beall, a retired Tier 4 member of the New York State Teachers' Retirement System, to purchase three years of service credit for his military service when he was on active duty in the United States Army from April 17, 1984 until February 27, 1987. Mr. Beall must pay a sum equal to the product of the number of years of military service credit and three percent of his compensation earned during the last twelve consecutive months of credited service preceding

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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his retirement. The increase in Mr. Beall's pension would be payable retroactively to his date of retirement. He was not eligible to purchase this military service credit upon his retirement in 2016 as it was before the law was changed to allow credit for military service rendered at any time, rather than during specified periods of war.

Cost:

The cost of this benefit is equal to the increase in the present value of liabilities minus Mr. Beall's contribution, which is estimated to be \$76,000. This cost would be borne by the employers of members of the New York State Teachers' Retirement System.

Data:

Member data as of June 30, 2025, prepared for the most recent actuarial valuation was used in determining this cost. The most recent data distributions and statistics can be found in the System's Annual Report for the fiscal year ended June 30, 2025. System assets are as reported in the System's financial statements which can be found in the System's Annual Report. This data will also be provided in the System's Actuarial Valuation Report as of June 30, 2025.

Methods and Assumptions:

A summary of actuarial assumptions and methods will be provided in the System's Actuarial Valuation Report as of June 30, 2025. Further details can be found in the most recent Recommended Actuarial Assumptions 2025 Report.

Actuarial Certification:

We, the undersigned actuaries for the New York State Teachers' Retirement System, certify the following:

1. The actuarial assumptions, methods, and data used are reasonable for the purposes of this fiscal note, internally consistent and are in accordance with standards of practice prescribed by the Actuarial Standards Board and generally accepted actuarial principles and procedures.

2. We relied on member data supplied by the participating employers of the New York State Teachers' Retirement System and assets as supplied in the annual Financial Statements by NYSTRS' Finance Department.

3. Results were prepared based on our current understanding of the proposal as of the date of this fiscal note. If the language or our understanding of the proposal changes, the results could change and require the issuance of a new fiscal note. The next annual update of the actuarial valuation could also produce different results. Results should not be relied upon for any other purpose.

4. This fiscal note was prepared in accordance with New York State Retirement and Social Security Law, New York State Education Law, applicable Internal Revenue Code, and accepted actuarial standards of practice as of the date of this fiscal note. This fiscal note does not constitute a legal opinion on the viability of this legislative proposal.

5. We are members of the American Academy of Actuaries and the Society of Actuaries, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. We are currently compliant with the Continuing Professional Development Requirement of the Society of Actuaries.

Fiscal Note Identification:

This Fiscal Note, 2026-13, dated January 29, 2026, was prepared by the Office of the Actuary of the New York State Teachers' Retirement System and is intended for use only during the 2026 Legislative Session.